

IN THE CIRCUIT COURT OF THE STATE OF OREGON
IN AND FOR THE COUNTY OF MULTNOMAH

PENNYMAC LOAN SERVICES, LLC,

Plaintiff,

vs.

UNKNOWN HEIRS & DEVISEES OF JOHN;
Q SAMPLE. AKA JOHN QUINCY
SAMPLE.; JAMES Q SAMPLE;
JANE Q SAMPLE; JUNE Q SAMPLE,

Defendants.

Case No. 24CV32513

GENERAL JUDGMENT OF
FORECLOSURE AND SALE

Default having been entered against Defendant(s), Unknown Heirs & Devisees of John

Q Sample. aka John Quincy Sample. , James Q Sample, Jane Q Sample and

June Q Sample:

It is hereby

ORDERED AND ADJUDGED:

1. The real property to which this judgment relates (hereafter the "Property") is situated in

Multnomah County, Oregon is commonly known as 100 Sample Avenue, Portland, OR

97000 and is legally described as follows:

1 - GENERAL JUDGMENT OF FORECLOSURE AND
SALE
LLG No. 84-556087

LOGS Legal Group LLP
1499 SE Tech Center Place, Suite 255, Vancouver, WA 98683
Telephone (360) 260-2253 (800)970-5647
Fax (360) 260-2285
ksutherland@logs.com

1 The North 60 feet of the East 150 feet of Lot 15, SAMPLE, in the City of Portland,
2 County of Multnomah and State of Oregon.

- 3 2. The Deed of Trust executed and delivered by Defendant, John Q Sample.
4 ("Borrower") on or about March 8, 2019 and recorded on March 13, 2019 as Recorder's Fee
5 No. 2019-201618 in the official records of Multnomah County, Oregon, is a valid and
6 perfected lien against all of the Property for the amount of Plaintiff's judgment as provided
7 herein.
8
- 9 3. The Plaintiff is the holder of the original note dated March 8, 2019 and made by John Q.
10 Sample. in the amount of \$360,000.00. A copy of the Note was attached to the complaint
11 as Exhibit. Plaintiff is the holder of the Note and the beneficial interest in the Deed of Trust
12 (together the "Loan").
13
- 14 4. The interest of each of the Defendant(s) subject to this Judgment and any successor in interest
15 in the Property is foreclosed and terminated excepting only any statutory right of redemption
16 as provided by Oregon law.
- 17 5. The lien of the Plaintiff is superior to any interest, lien, or claim of the remaining Defendants
18 and shall remain in effect until issuance of a Sheriff's Deed. Upon Motion to the Court and
19 good cause shown, Plaintiff may move to rescind the foreclosure judgment and to reinstate
20 the Loan prior to the Sheriff's sale, returning the parties to their prejudgment interests and
21 priorities.
22
- 23 6. The Defendant(s) are not entitled to a homestead exception as against Plaintiff's judgment.
24

- 1 7. All of the rights, title and interest that Borrower(s) had as of the date of the Deed of Trust or
2 thereafter acquired in the subject Property, is hereby ordered to be sold by the Multnomah
3 County Sheriff's Office in accordance with the process for sale upon execution, and the
4 proceeds of sale shall be applied; first to the costs of sale; second to satisfaction of the amounts
5 awarded Plaintiff herein; with the surplus, if any, to the Defendants in the priority as their
6 interest may appear or to the clerk of the court to be distributed to such party of parties as may
7 establish their right thereto.
8
9 8. Plaintiff or any junior lienholders may become purchaser at the sale of the Property.
10 9. The purchaser at the sale is entitled to such remedies as are available at law or in equity to
11 secure possession.
12 10. The purchaser at the sale may apply to the Court for a writ of assistance if any Defendant or
13 any person holding possession under or through such Defendant(s) shall refuse to surrender
14 possession to the purchaser immediately on the purchaser's demand for possession.
15
16 11. Under the terms of the Loan there is now due and owing to Plaintiff the following amounts:

Principal		\$352,970.28	
Prejudgment interest at 3.875% through August 31, 2024 (accruing thereafter until entry of judgment at \$37.47 per diem)			\$59,253.99
Late Charges		\$98.60	
Other Costs and fees (recoverable)		31,214.73	
	Appraisal/BPO	\$825.00	
	Property Inspections	\$495.00	
	Property Preservation	\$4,150.00	
	RESTRICTED ESCROW	\$-6,386.00	

25 3 - GENERAL JUDGMENT OF FORECLOSURE AND
26 SALE
27 LLG No. 84-556087

LOGS Legal Group LLP
1499 SE Tech Center Place, Suite 255, Vancouver, WA 98683
Telephone (360) 260-2253 (800)970-5647
Fax (360) 260-2285
ksutherland@logs.com

	ESCROW ADVANCES	\$34,345.05		
	Suspense Balance	(\$2,214.32)		
		Subtotal		\$384,283.61
		Total plus Prejudgment Interest		\$443,537.60

12. Attorney Fees and Costs are awarded to Plaintiff as follows:

Costs			\$2,033.40
	Filing Fee	\$281.00	
	Lis Pendens Recording Fee	\$81.00	
	Service by Publication	\$446.40	
	Service Costs	\$950.00	
	Prevailing Party Fee	\$275.00	
Attorney fees			\$4,450.00
Total			\$6,483.40

13. Post judgment interest on the aggregate of all amounts declared due above shall accrue from the date of judgment at the legal rate of 9% per annum pursuant to ORS 82.010.

14. This Judgment shall not create a personal lien or liability against Borrower except as is customary or necessary to execute on such Judgment and for purposes of redemption. In no event should it be construed as establishing personal liability for any persons whose debt has been extinguished in bankruptcy or by an In Rem order granting relief from stay, but only to foreclose the deed of trust mortgage. In the event the proceeds of sale are insufficient to pay the amounts due to Plaintiff, no general execution shall be issued and Plaintiff shall not be entitled to any further judgment, including a judgment for deficiency.

15. Execution may issue against the subject property for the aggregate amount found due Plaintiff herein as detailed in Paragraphs 11 through 13 together (together "Amounts Due"). Plaintiff

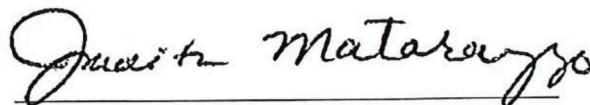
1 may credit bid up to the Amounts Due plus such additional amounts as provided by ORS
2 18.936 or other applicable law.

3 16. If before sale such amount, including sheriff's fees for the execution, is tendered to the Court
4 and paid to the clerk, the execution, if issued, shall be recalled and the effect of the judgment
5 as to the amounts due shall be terminated.

6
7 17. Plaintiff may credit bid the amounts determined in Paragraphs 11 through 13 plus such
8 additional amounts as provided in Paragraph 16 for purposes of ORS 18.936.

9 18. This Court shall retain jurisdiction to enter such additional order, judgment or decree
10 necessary to enforce this judgment, the writ of execution or for the purchaser at the foreclosure
11 sale to obtain possession.
12
13
14

15 12/3/2024 3:09:22 PM

16
17 

18 Circuit Court Judge Judith H. Matarazzo
19 Proxy signed by HCW

20 Certificate of Readiness under UTCR 5 100

21 This proposed order or judgment is ready for judicial signature because:

22 1. ☐ Each party affected by this order or judgment has stipulated to the order or judgment, as
shown by each party's signature on the document being submitted.

23 2. ☐ Each party affected by this order or judgment has approved the order or judgment, as shown
24 by each party's signature on the document being submitted or by written confirmation of approval
sent to me.

25 3. I have served a copy of this order or judgment on each party entitled to service and:

26 5 - GENERAL JUDGMENT OF FORECLOSURE AND
SALE
LLG No. 84-556087

LOGS Legal Group LLP
1499 SE Tech Center Place, Suite 255, Vancouver, WA 98683
Telephone (360) 260-2253 (800) 970-5647
Fax (360) 260-2285
ksutherland@logs.com

- 1 a. No objection has been served on me.
2 b. ☐ I received objections that I could not resolve with a party despite reasonable efforts to do so.
3 I have filed a copy of the objections I received and indicated which objections remain unresolved.
4 c. ☐ After conferring about objections, [role and name of objecting party] agreed to independently
5 file any remaining objection.
6 4. ☒ Service is not required pursuant to subsection (3) of this rule, or by statute, rule, or otherwise.
7 UTCR 8/1/16 5.5 (including out-of-cycle amendment of 5.100)
8 5. ☐ This is a proposed judgment that includes an award of punitive damages and notice has been
9 served on the Director of the Crime Victims' Assistance Section as required by subsection (5) of
10 this rule.
11 6. ☐ Other: _____

12 Submitted by:

13 Attorneys for Plaintiff,
14 LOGS LEGAL GROUP LLP

15 By: _____

16 ☒ James A. Craft #090146 [jcraft@logs.com]

17 ☐ Kelly D. Sutherland #873575 [ksutherland@logs.com]

18 ☐ Cara J. Richter #094855 [crichter@logs.com]

19 1499 SE Tech Center Place, Suite 255, Vancouver, WA 98683

20 (360) 260-2253; Fax (360) 260-2285

21
22
23
24
25 6 - GENERAL JUDGMENT OF FORECLOSURE AND
26 SALE
27 LLG No. 84-556087

28
LOGS Legal Group LLP
1499 SE Tech Center Place, Suite 255, Vancouver, WA 98683
Telephone (360) 260-2253 (800) 970-5647
Fax (360) 260-2285
ksutherland@logs.com